

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-y8b2-r6an
Comments Due: March 15, 2025
Submission Type: Web

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-4886

Comment on FR Doc # 2025-02305

Submitter Information

Name: Michael Harris

[REDACTED]

General Comment

From the desk of a licensed IT professional residing in Honolulu, a native-born citizen of the United States, on the subject of the Request for Information on the Development of an Artificial Intelligence (AI) Action Plan,

AI, as it stands, is a theft and laundering machine. It relies upon the unlawful collection of data without end user's consent, or else the harvesting of data by way of quietly and surreptitiously inserted clauses within the usage agreements of extant services which serve to surrender user data for use in datasets.

The law is not an "unnecessary burden" upon big tech companies. Neither are the wishes of private citizens to not have their data used to create AI which will, invariably, be used to replace services, content, and documentation that would otherwise be better off created by a human hand. We are, notionally, "an Empire of Laws, not of Men." This necessarily entails that our obligations should be first unto the law, as opposed to kowtowing to wealthy corporations who view the rights of individuals to their intellectual property as a pesky obstacle on their way to becoming even more fantastically wealthy. To make exceptions to the law simply because the entity requesting the exemption is very well connected and funded is morally bankrupt in every sense of the word. It will weaken IP law and further set the precedent that intellectual property rights only exist for those wealthy enough to have the legal wherewithal to engage in their protracted defense.

AI is a tool which consumes data and regurgitates a median approximation of the set consumed. Services run by AI are, invariably, inferior to those run by an actual human being. Almost universally, AI-driven services are spurned by human beings, who would prefer to interact with another actual human, who, unlike AI, can be made accountable for their actions. Worse, as the vulnerability of AI to dataset poisoning (clandestine or otherwise) becomes more understood and exploitable by foreign actors, the very real possibility is raised that we will have attempted to hand over vast sections of society to a poorly understood and under-regulated type of automation that, even in the absence of deliberate dataset poisoning, is known for its tendency to fabricate erroneous output from thin air and act as though it is truth. Poisoned data, lurking undetected within AI models, would worsen this tendency and cause untold havoc depending on how critical a system has been automated and how much real-world decision making capability a model has been invested with. Cases already exist where AI models have been "tricked" into, say, extending discounts to customers which do not exist—vaporware benefits which have been legally upheld after the fact as binding in some cases, as with the high-profile incident with Air Canada. What happens when this unreliable and unaccountable technology is placed in control of more important tasks? What happens when deliberately poisoned or otherwise erroneous data within its training dataset causes it to malfunction?

If there is any focus such a notional action plan should take, it is on reigning in AI and the companies that stand to profit from its unethical use such that the long term prosperity and functionality of American society is not irreparably damaged by what is, in essence, a cavalier drive to maximize short term profits, in large part on the taxpayer's dime. Companies using and developing AI must be forced through the most draconian legal means available to be transparent as to what has been used in the datasets of AI, and to disclose in plain terms what content is AI generated. They must be forced to obtain clear and informed consent before they can harvest data for use. They must be forced to come to the table in a fair and equitable market for licensure of data usage, rather than relying upon underhanded maneuvers like holding extant services hostage pending consent for users to surrender their data for AI usage.

Anything short of this will merely enable the continued frenzy of theft AI development has been engaging in, and worsen the long-term

consequences for the fabric of society as we allow the creative energies and products of the public to be plundered, most often for free and without informed consent, by unscrupulous companies with no goal past personal enrichment, and no loyalty to nation beyond its usefulness as a host from which profit can be extracted.

Thank you for the opportunity to comment on this particular action plan. I hope you will take my input under consideration.